KGARIYA ATTORNEYS INCORPORATED: INSTITUTIONAL COMPANY PROFILE

1. Executive Overview & Strategic Positioning

Kgariya Attorneys Incorporated (Kgariya Inc.) occupies a distinct and authoritative position within the South African legal market. Headquartered in Pretoria, Gauteng, the firm has executed a deliberate, tier-one institutional restructuring, evolving from a broad general corporate practice into a highly specialized commercial litigation, real estate development packaging, and development finance firm. This institutional profile serves as an executive brief for corporate leaders, State-Owned Entities (SOEs), government departments, banking institutions, Development Finance Institutions (DFIs), and prospective legal merger partners who require specialized, compliant, and commercially astute legal counsel.

1.1 Strategic Intent & Firm Evolution

To address the increasingly complex regulatory and commercial demands of Gauteng's public and private sectors, Kgariya Inc. undertook a strategic pivot away from generalized legal provision. The firm’s legacy baseline—a static six-page WordPress build un-updated since June 2021 that listed over 40 generalized sub-services on a single page, including competition, aviation, and immigration law—represented a historical generalist model. Recognizing that institutional clients demand specialized depth rather than superficial width, the firm formally retired these non-core practice areas to execute a definitive institutional leap forward.

In their place, Kgariya Inc. concentrated its strategic assets and operational infrastructure around six prioritized core competencies:

1. Commercial Litigation & Arbitration
2. Real Estate Development Packaging
3. Mining & Resources (Mining-Adjacent Services)
4. Agricultural & Development Finance
5. Banking & Finance
6. Conveyancing & Property

By realigning its practice hierarchy, Kgariya Inc. ensures that institutional clients access high-value legal expertise backed by direct commercial execution experience. This specialized structure optimizes attorney resource allocation, accelerates transaction close times, and delivers risk-adjusted legal strategy across high-stakes commercial disputes and development finance structures.

1.2 Core Target Audiences & Client Matrix

Kgariya Inc. serves an expansive institutional ecosystem across the South African economy. The following client matrix outlines the firm's core target segments, their distinct institutional legal requirements, and Kgariya Inc.'s strategic legal response:

Client Segment	Institutional Legal Requirements	Kgariya Inc. Strategic Alignment
Blue Chip Companies	High-court commercial litigation, complex breach-of-contract disputes, AFSA arbitrations, and corporate workouts.	Specialized litigation practice, structured dispute strategy, and dedicated High Court advocacy.
State-Owned Entities (SOE Panel Assessors)	Statutory compliance, transparent governance, large-scale public dispute resolution, and strict panel adherence.	Verified Legal Practice Council (LPC) compliance, institutional trust architecture, and robust governance reporting.
Government Departments	Public sector advisory, regulatory compliance, public procurement legal oversight, and risk mitigation.	Structured administrative law capabilities, PAIA/POPIA compliance, and formal governance alignment.
Local Municipalities	Municipal land-use approvals, township establishment oversight, public infrastructure packaging, and regulatory disputes.	Specialized land assembly legal packaging, municipal regulatory navigation, and public-private partnership structuring.
Educational Institutions	Commercial property portfolio management, high-value transfer packaging, and institutional dispute resolution.	Dedicated conveyancing infrastructure, property portfolio management, and commercial contract advisory.

Banks & DFIs	Complex loan and security documentation, mortgage bond registrations over commercial/agricultural land, and workout management.	Specialized banking and development finance practice, custom security packaging, and complete panel-readiness.
Property Developers	Land assembly, feasibility legal modeling, rezoning, NHBRC enrolment, SHRA/subsidized housing packaging, and joint ventures.	End-to-end real estate development legal packaging, bank/DFI capital close support, and end-user finance structuring.
Retiring Legal Practitioners	Confidential practice succession, seamless client matter handovers, staff retention, and firm continuity.	Structured "Joining the Firm" succession model featuring discreet, confidential, multi-phase transition pathways.

1.3 Institutional Values & The "Evidence Over Slogans" Philosophy

Kgariya Inc. explicitly rejects generic corporate rhetoric, such as the legacy slogan *"exceeding client expectations."* In its place, the firm enforces an operational philosophy defined as **"Evidence Over Slogans."** Grounded in institutional integrity, this philosophy demands that every market statement and client commitment be backed by verifiable, objective proof.

The operational pillars of this trust architecture include:

- **Verifiable Credentials:** Public disclosures are strictly restricted to confirmed academic qualifications, confirmed B-BBEE verification status, and accredited professional memberships.
- **LPC Regulatory Compliance:** Uncompromising adherence to the Legal Practice Council (LPC) Code of Conduct, specifically governing marketing disclosures, trust account management, and legal practice operations.
- **Data Governance & Transparency:** Complete alignment with Protection of Personal Information Act (POPIA) data handling standards and accessible Information Manuals under the Promotion of Access to Information Act (PAIA).
- **Pre-Mandate Conflict Screening:** Systematized conflict-check protocols integrated into initial client intake pathways. Prospective clients are explicitly warned against uploading

or transmitting confidential case material prior to the completion of formal conflict screening and execution of a written mandate.

Anchored by this verifiable trust architecture, Kgariya Inc. translates its strategic positioning into tangible legal execution across six core practice areas.

2. Core Practice Areas & Specialized Capabilities

Kgariya Inc. organizes its technical capabilities into six structured service lines. This deliberate practice hierarchy equips the firm to manage multi-faceted commercial mandates, bridging the divide between regulatory compliance, financial engineering, and legal execution.

Kgariya Inc. Practice Hierarchy

1. **Commercial Litigation & Arbitration** — High Court Litigation | AFSA Proceedings | Banking & Insurance Claims
2. **Real Estate Development Packaging** — Land Assembly | Townships & Rezoning | SHRA & DFI Capital Close
3. **Mining & Resources (Mining-Adjacent)** — Mining Finance & Security | Mineral Rights Transfers | SLP & Surface Rights
4. **Agricultural & Development Finance** — Land Bank Panel Mandates | Farm Bonds | Movable Notarial Bonds
5. **Banking & Finance** — Facility Agreements & Security | Corporate Restructuring | Commercial Workouts
6. **Conveyancing & Property** — Institutional Transfers | Bank Panel Bond Registrations | Sectional Title Schemes

2.1 Priority Practice Area Breakdown

2.1.1 Commercial Litigation & Arbitration

As the firm's primary practice leader, this division represents corporate entities, financial institutions, and public bodies in high-stakes litigation and alternative dispute resolution.

- **Operational Scope:** High Court litigation and formal arbitration proceedings under the Arbitration Foundation of Southern Africa (AFSA).
- **Technical Delivery:** Drafting specialized pleadings, managing urgent High Court applications, executing interlocutory proceedings, managing multi-day arbitration trials, and negotiating complex commercial settlements.
- **Typical Matter Profiles:** Banking and financial disputes, construction and engineering claims, corporate contract enforcement, insurance coverage litigation, shareholder conflicts, and franchise agreement disputes.

2.1.2 Real Estate Development Packaging

A key differentiator for Kgariya Inc. is its capability to structure complete legal packages for large-scale real estate initiatives, bridging the crucial gap between municipal land-use approvals, state regulatory compliance, and commercial or DFI bank capital close.

- **Operational Scope:** Comprehensive, end-to-end legal project packaging from initial land assembly through regulatory approvals to final capital drawdowns and end-user finance setup.
- **Technical Delivery:** Structuring land acquisition contracts and joint venture (JV) legal frameworks; conducting legal feasibility assessments and cost modeling; processing township establishment, rezoning, and land-use rights; managing National Home Builders Registration Council (NHBRC) enrolments; packaging Social Housing Regulatory Authority (SHRA) and subsidized housing schemes; compiling formal bank and Development Finance Institution (DFI) development finance applications; and structuring end-user mortgage packaging.
- **Typical Matter Profiles:** Mixed-use commercial developments, high-density residential schemes, SHRA-subsidized social housing projects, industrial parks, and municipal infrastructure packaging.

2.1.3 Mining & Resources (Mining-Adjacent)

Kgariya Inc. delivers specialized legal support tailored to the transactional, land access, and regulatory requirements surrounding mining operations.

- **Operational Scope:** Negotiating and legalizing commercial transactions, surface access, and security structures in the mining and resources sector.
- **Technical Delivery:** Structuring mining finance and debt security instruments; processing mineral rights transfers and registrations; negotiating surface rights access and land-use agreements with landowners and local communities; drafting Community and Social Labour Plan (SLP) agreements; and resolving mining-adjacent contract disputes.
- **Typical Matter Profiles:** Surface rights access agreements, SLP legal frameworks, mineral rights conveyancing, and mine development financing structures.

2.1.4 Agricultural & Development Finance

Leveraging dedicated institutional experience, Kgariya Inc. manages specialized panel mandates and debt security packaging for agricultural lenders and development finance entities.

- **Operational Scope:** Legal execution for specialized agricultural institutions, state land banks, and private agri-lenders.
- **Technical Delivery:** Registering mortgage bonds over farm holdings and agricultural commercial land; drafting and registering notarial bonds over movable farm equipment and biological assets; structuring specialized agri-loans; and executing debt recoveries and workouts.
- **Typical Matter Profiles:** Land Bank legal panel execution, agri-lender credit security packaging, and commercial farming debt restructuring.

2.1.5 Banking & Finance

The banking and finance practice offers comprehensive legal advice and transactional packaging for commercial lenders, private credit funds, and corporate borrowers.

- **Operational Scope:** Structuring, documenting, and securing commercial debt facilities, property finance, and corporate restructurings.
- **Technical Delivery:** Drafting loan facility agreements, intercreditor agreements, and multi-tiered security packages; structuring commercial property and development loans; executing debt workouts; and managing corporate financial restructurings.
- **Typical Matter Profiles:** Commercial lending facilities, corporate debt restructuring, development debt packaging, and financial recovery workouts.

2.1.6 Conveyancing & Property

The firm operates a high-capacity conveyancing and property practice equipped to handle institutional land transfers, commercial banking panel bond registrations, and formal notarial executions.

- **Operational Scope:** Institutional property conveyancing, high-volume bond registrations, and specialized legal notarial services.
- **Technical Delivery:** Executing commercial and residential property transfers; registering mortgage bonds for major banking panels; opening sectional title registers; managing township conveyancing registers; and executing legal notarial acts.
- **Typical Matter Profiles:** Commercial property transfers, banking panel bond registrations, sectional title establishments, and institutional property portfolio conveyancing.

2.2 Capabilities & Focus Areas Summary

Priority Rank	Practice Area	Core Deliverables	Targeted Client Sectors
1	**Commercial Litigation & Arbitration**	High Court litigation, AFSA arbitrations, dispute strategy, contract enforcement.	Corporate entities, banks, construction firms, insurers, franchisors.
2	**Real Estate Development Packaging**	Land assembly, feasibility models, rezoning, NHBRC/SHRA	Property developers, housing funds, DFIs,

		packaging, DFI capital close.	municipalities, joint ventures.
3	**Mining & Resources (Mining-Adjacent)**	Mining finance, mineral rights transfers, surface rights access, SLP agreements.	Mining houses, resource investors, landowners, mining communities.
4	**Agricultural & Development Finance**	Land Bank mandates, agricultural mortgage bonds, movable notarial bonds.	Agri-lenders, Land Bank, commercial farming enterprises, DFIs.
5	**Banking & Finance**	Loan & security documentation, development finance, debt workouts, restructurings.	Commercial banks, DFIs, private credit funds, corporate borrowers.
6	**Conveyancing & Property**	Property transfers, panel bond registrations, sectional titles, notarial acts.	Banking panels, property funds, property developers, buyers/sellers.

The seamless delivery of these core practices is directly anchored by the firm's executive leadership, whose multi-disciplinary qualifications bridge legal strategy and commercial execution.

3. Executive Leadership & Verifiable Credentials

Kgariya Inc.'s execution capability stems from its leadership structure, which integrates advanced legal qualifications, executive finance training, and hands-on operational leadership in real estate development and corporate management.

3.1 Director Profile & Multi-Disciplinary Background

The director of Kgariya Inc. possesses a unique multi-disciplinary academic and practical background, combining advanced legal degrees, business leadership, and technical industry certifications:

Executive Director Credentials Summary

- **Legal & Financial Qualifications:** Bachelor of Laws (LLB) | Master of Business Administration (MBA) in Finance
- **Real Estate Development Qualifications:** Postgraduate Diploma in Real Estate Development and Management (Wits) | Property Development Programme (PDP) (UCT)
- **Specialized Industry Certifications:** Mining Law & Resources Certificates (Wits)
- **Operational & Leadership Experience:** Direct hands-on operational experience handling Land Bank legal matters during tenure at AFGRI | Former Chief Executive Officer (CEO) of a property company, managing commercial portfolios, residential developments, mixed-use schemes, SHRA-subsidized social housing, and property portfolio operations.

This specialized combination of qualifications ensures that Kgariya Inc. provides legal counsel grounded in financial modeling, developer risk management, and executive commercial judgment.

3.2 Institutional Trust Architecture & Compliance Credentials

To provide total compliance assurance to corporate boards, government tender committees, and bank panel assessors, Kgariya Inc. maintains a robust institutional trust architecture:

- **Broad-Based Black Economic Empowerment (B-BBEE):** Confirmed B-BBEE status and formal verification certificates available immediately upon request.
- **Legal Practice Council (LPC) Compliance:** Fully registered practice operating in strict compliance with the LPC Code of Conduct, including rules governing trust account auditing, director practice disclosures, and ethical marketing.
- **POPIA Data Safety Protocols:** Data collection and processing workflows structured to uphold Protection of Personal Information Act standards, utilizing secure inquiry channels and consent-aware data handling.
- **PAIA Transparency Manual:** Published Information Manual fully compliant with the Promotion of Access to Information Act, accessible via the firm's legal repository.
- **Pre-Mandate Conflict Screening:** Systematized onboarding protocols featuring explicit warnings that prohibit the transmission of confidential case files prior to formal conflict checking and execution of a signed engagement mandate.

Beyond individual leadership credentials, Kgariya Inc. extends its market reach and client capabilities through strategic group synergies and dedicated practice expansion models.

4. The Kgariya Ecosystem & Strategic Expansion Model

Kgariya Inc. operates within a broader corporate ecosystem, leveraging group synergies and executing a structured expansion framework to scale its practice capabilities.

4.1 Kgariya & Co Group Synergies

Kgariya Attorneys Inc. operates with the strategic support of the broader **Kgariya & Co Group**. The group brings together complementary capabilities across:

- Real Estate Development
- Construction Management
- Property & Financial Advisory

This operational link provides the legal practice with distinct real-world legal insights. By observing and participating in the practical mechanics of project cost modeling, construction risk mitigation, and property financing across group projects, Kgariya Inc. delivers legal advisory work that accounts for operational realities, project cash flows, and commercial risk parameters.

4.2 Practice Transition, Merger & Succession Model

To drive firm growth and expand its Gauteng footprint, Kgariya Inc. maintains a dedicated succession and practice acquisition strategy ("Joining the Firm"). This framework is built specifically for retiring legal practitioners seeking a seamless, honorable transition for their practices.

To ensure structured integration and market stability, Kgariya Inc. executes practice acquisitions through a dedicated **3-Phase Expansion Model**:

1. **Phase 1: Relaunch & Compliance (Months 0–2)** Establishing core practice infrastructure, establishing statutory LPC compliance disclosures, activating practice-routed contact channels, and initiating primary client alignment workflows.
2. **Phase 2: Credibility & Representative Matters (Months 3–9)** Publishing approved, anonymized representative matter cards, integrating verified B-BBEE and panel credentials, activating group synergy channels, and deploying the discreet "Joining the Firm" succession module.
3. **Phase 3: Acquisition Growth & Client-Transition Notices (Months 10–24)** Onboarding incoming attorneys from acquired practices, issuing transaction-specific client-transition notices for merged practices, and integrating new practice nodes into the firm's content and CMS infrastructure.

Key operational features of the "Joining the Firm" framework include:

- **Uncompromising Continuity of Care:** Structured matter handover protocols designed to preserve historic client relationships and ensure uninterrupted legal representation.

- **Staff & Candidate Attorney Retention:** Career transition pathways structured to provide stability, ongoing mentorship, and long-term career progression for transition staff and candidate attorneys.
- **Strictly Confidential Dialogues:** Purpose-built, discreet enquiry processes that protect practice succession discussions from premature public transaction disclosures or market exposure.
- **Scalable Team Infrastructure:** Practice integration workflows and attorney profile systems designed to absorb incoming legal professionals and expanding client rosters without operational disruption.

To provide seamless access to these practice capabilities and group synergies, the firm maintains structured, low-friction onboarding pathways and clear institutional engagement protocols.

5. Institutional Engagement Pathways & Office Directory

Kgariya Inc. enforces transparent onboarding workflows, clear commercial fee options, and formal communication channels to guarantee a low-friction engagement experience for new clients and panel assessors.

5.1 Onboarding & Engagement Journey

Client engagements follow a systematic four-step workflow designed to enforce confidentiality, establish mandate scope, and maintain LPC compliance:

Step 1: Practice-Routed Inquiry & Conflict Screening Initial client enquiry is routed directly to the relevant practice lead. Every intake channel features an explicit conflict-check warning advising prospective clients not to transmit confidential case files prior to formal conflict screening and mandate execution.

Step 2: Consultation & Strategy Scoping Upon passing conflict checks, a structured scoping consultation is scheduled (via video conference, telephone, or in-person at the firm's Pretoria office) to define legal scope, strategy, and risk parameters.

Step 3: Fee Model Transparency Clear commercial fee options are presented and agreed upon in writing prior to commencing work:

- *Standard Hourly Rates:* For complex commercial litigation, arbitrations, and open-ended advisory mandates.
- *Fixed-Fee Project Packaging:* For structured real estate packaging, contract drafting, and specific conveyancing transactions.
- *Retainer Arrangements:* Tailored monthly retainers for corporate and public entities requiring ongoing legal advisory.

Step 4: Matter Execution & Progress Tracking Following execution of the formal mandate, the matter is handled under strict LPC Code of Conduct compliance rules, supported by regular progress reporting and transparent client communication.

5.2 Operational Directory & Contact Information

For formal corporate correspondence, panel assessment documentation, or direct practice inquiries, Kgariya Inc. can be reached via the following verified contact channels:

OFFICIAL ENTITY DIRECTORY

- **Legal Entity Name:** Kgariya Attorneys Incorporated (Kgariya Inc.)
- **Physical Office:** Walker Creek Office Park, Building 2, 2nd Floor, 90 Florence Ribeiro Street, Pretoria, 0181, South Africa
- **Direct Telephone:** (+27) 12 786 0920
- **Official Email Routing:** info@kgariyainc.co.za
- **Web Platform:** www.kgariyainc.co.za